

JUSTIFICATION AND APPROVAL

For Other Than Full and Open Competition

(Commercial Products or Commercial Services – SAT Level)

1. Contracting Activity

U.S. Department of Health and Human Services (HHS), Centers for Disease Control and Prevention (CDC), Office of Acquisition Services (OAS), Chamblee, Georgia 30341

2. Description of the Action

Approval of a **sole-source** acquisition of services (data) under a firm-fixed priced contract from the fifty (50) states, the District of Columbia, New York City, American Samoa, Guam, Northern Mariana Islands, Puerto Rico, and the Virgin Islands).

3. Description of the Commercial Requirement

The Government requires jurisdictions to maintain and operate an information system, from which selected information from death records will be extracted and transmitted to the National Center for Health Statistics (NCHS). The Contractor will provide all personnel, materials, services, and facilities required to provide the information to NCHS (see attached IGCE for list of jurisdictions). Data from the fifty-seven (57) jurisdictions are being procured.

4. Authority for Other Than Full and Open Competition

This acquisition is justified under **Revolutionary FAR Overhaul 6.103-1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements**.

5. Unique Qualifications of the Contractor

The place of occurrence (**see attached list**) is the only responsible source capable of meeting the Government's minimum requirements because:

- The requirement is for a **proprietary or uniquely configured commercial product/service**; and
- The contractor controls the **intellectual property, technical data, or integration capability** necessary to meet the requirement.

No other known commercial sources can provide a functionally equivalent product or service without unacceptable cost, schedule, or performance impact.

6. Efforts to Obtain Competition

Data are submitted by health departments in each jurisdiction. No other source is available.

7. Fair and Reasonable Price Determination

Jurisdiction are paid \$.034 per record based on the most recent closed data year (2024 for this procurement). A portion of user fees are also paid to the jurisdictions for the previous calendar year (2025 for this procurement). Funding by jurisdiction is included in the attachment.

8. Other Supporting Facts

Data can only be purchased from the jurisdiction in which the death occurred.

9. Certification

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Contracting Officer: Sheena Delaine Date: 2/19/2026

Approving Official: Sheena Delaine Date: 2/19/2026

(Approval IAW Revolutionary FAR Overhaul 6.304 and HHSAR 306.304)